

22STCV23458 22STCV23458

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Case Number: 22STCV23458 Hearing Date: July 17, 2026 Dept: 406

COSTTREE HOLDINGS, LLC,

Plaintiff,

v.

ECIVIS, INC., et al.,

Defendants.

AND RELATED MATTERS.

Case No.: 22STCV23458

Hearing Date: July 17, 2026

[TENTATIVE]

order RE:

defendant gty technology holdings inc.'s

motion to compel further responses

I. BACKGROUND

a. The Underlying Complaint

On July 20, 2022, Plaintiff CostTree

Holding, LLC (CostTree) filed this action against Defendants eCivis, Inc.

(eCivis), GTY Technology Holdings, Inc. (GTY), and James Ha (Ha). On March 15, 2024, Plaintiffs CostTree and Capital Accounting Partners, LLC (CAP) filed the operative Second Amended Complaint (SAC), alleging (1) breach of the covenant of good faith and fair dealing, (2) fraud, (3) negligent misrepresentation, (4) civil conspiracy, (5) breach of contract, and (6) intentional interference with contractual relations.

The SAC alleges that CostTree agreed to sell its assets to eCivis through an Asset Purchase Agreement (APA) with eCivis. One of these assets was a certain program developed by CostTree, called Allocate. In exchange for the sale, the APA provided that CostTree would make earn-out payments from Allocate until a certain date and that eCivis would assume certain liabilities of CostTree, including a License Agreement with CAP. eCivis has allegedly failed to adequately promote sales or renewals of Allocate and has not assumed any of CostTree's liabilities.

eCivis allegedly acted to minimize CostTree's earn-out payments from Allocate until CostTree's right to earn-out payments expired under the APA. Meanwhile, Ha, the CEO of eCivis, sought to maximize his own earn-out payments from eCivis's programs under an agreement with GTY, which acquired eCivis and its programs. Despite increased resources from the GTY acquisition to market eCivis's programs, eCivis allegedly refused to market or sell Allocate until CostTree's right to earn-out payments expired. This allegedly allowed eCivis to effectively acquire CostTree's assets for little to no consideration. Defendants allegedly concocted this scheme to remove a competitor from the market and maximize their own profits.

Defendants also allegedly terminated the Licensing Agreement with CAP without following the procedures for termination outlined in the Licensing Agreement. Defendants allegedly cut off CAP's access to Allocate, preventing CAP from servicing its clientele for nearly a month. Defendants allegedly did this as retaliation for CostTree filing this action, as Nicolie Wickwire (Wickwire) is the CEO of both CostTree and CAP.

Ha has since been dismissed.

b. Wickwire's Related Action

On October 6, 2023, Wickwire filed the action Nicolie Wickwire v. eCivis, Inc., et al. (23CMCV01613),

alleging (1) breach of the covenant of good faith and fair dealing, (2) constructive discharge in violation of public policy, (3) defamation, and (4) declaratory relief. The Wickwire action was consolidated with this action, with this action as the lead case. However, Wickwire subsequently dismissed her complaint with prejudice.

c. The Cross-Complaint

On April 29, 2024, eCivis and GTY (dba Euna Solutions) cross-complained against CostTree, CAP, Wickwire, and Stephanie Ratajczak (Ratajczak). eCivis and GTY filed the operative Third Amended Cross-Complaint (TACC) on September 15, 2025, alleging (1) conversion, (2) intentional interference with prospective economic advantage, (3) breach of employment agreement, (4) breach of the APA, (5) breach of the CAP Licensing Agreement, (6) fraud, and (7) civil conspiracy.

The TACC alleges that Allocate underperformed as compared to Wickwire's promises, despite assistance from eCivis and GTY. Upon Wickwire's job title change, she allegedly refused to sign the new employment agreement and directed her subordinate, Ratajczak, to not sign her agreement either. Ratajczak was allegedly working for CAP at the same time as working for eCivis. Wickwire, Ratajczak, and CAP allegedly sold Allocate services to third party customers who should have contracted with eCivis and GTY. Wickwire, Ratajczak, and CAP allegedly allowed third parties to access and use Allocate without a proper license and without paying fees to eCivis and GTY. These actions allegedly violated the APA, Licensing Agreement, and employment agreements.

When Wickwire and Ratajczak simultaneously resigned, they allegedly left eCivis and GTY without any knowledgeable employees to manage Allocate. Wickwire allegedly failed to train any other employees on Allocate as was her duty prior to resigning, leaving Allocate with little value and thereby damaging eCivis and GTY. Since their resignations, Wickwire and Ratajczak have allegedly continued to impermissibly access or grant unpermitted access to Allocate beyond the limited access permitted for customers of CAP.

d. The Instant Motion

On June 11, 2026, GTY filed the

instant motion to compel CAP's further responses to Requests for Production, Set One. CAP filed an opposition on July 6, 2026. GTY filed a reply on July 10, 2026.

II.

LEGAL STANDARD

Upon receiving responses to its discovery requests, the propounding party may move for an order compelling further responses if the responses are incomplete or evasive, or objections are without merit or too general. (Code Civ. Proc., §§ 2030.300(a), 2031.310(a), 2033.290(a).)

III. DISCUSSION

a. Statement of Compliance

A statement of compliance "shall state that the production . . . will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production." (Code Civ. Proc., § 2031.220.)

CAP's statement of compliance states: "The production, inspection, copying, testing, or sampling, and related activity demanded will be allowed either in whole, and all documents or things in the demanded category that is in the possession, custody, or control of that party and to which no objection is being made will be included in the production."

This response precisely tracks the Code and is therefore proper. GTY argues that the response is incomplete because CAP states it will produce documents "to which no objection is being made" but does not actually raise any objections. This language tracks the Code. To the extent CAP raises no objections, that means the production will be allowed in whole, and nothing will be withheld under an objection.

GTY also contends that CAP has failed to produce any documents. To the extent CAP fails to abide by its statements of compliance, GTY may file a motion under section 2031.320. This

has no bearing on the sufficiency of the written responses.

Lastly, GTY argues that CAP's responses fail to provide bates numbers in violation of section 2031.280(a): "Any documents or category of documents produced in response to a demand for inspection, copying, testing, or sampling shall be identified with the specific request number to which the documents respond." This is a labeling requirement imposed on the production itself. It has no bearing on the sufficiency of the written responses.

Therefore, the motion is DENIED as to RFP Nos. 19-21, 23, 25-26, 32-33, 44-45, 48, 50-51, 53-55, 58-72, 81-82, 87, 96, 115, and 98[2d].

b. CAP's Possession of Documents

In response to the remaining requests, CAP responded with the following: "Capital Accounting Partners is unable to comply with this demand because the records requested have never been in its possession, custody, or control. If they exist, the records are in possession of Nicolie Wickwire or CostTree Holdings, LLC."

CAP argues that it cannot produce documents belonging to CostTree, even though Wickwire is the CEO of both CAP and CostTree, because Wickwire owes CostTree a fiduciary duty not to disclose CostTree's information without consent. However, Wickwire is the sole principal of both CAP and CostTree. No one else's consent or control is implicated. Wickwire cannot breach fiduciary duties to herself.

Moreover, the RFPs do not ask for CostTree's documents; they ask for documents supporting CAP's contentions in the SAC. Any responsive document that CAP intends to use to support its contentions is necessarily a document in its possession, custody, or control. CAP cannot have it both ways—it cannot have control over documents for purposes of prosecuting its claims but disavow control for purposes of discovery.

Therefore, the motion is GRANTED as to RFP Nos. 10-18, 35-37, and 116-117.

IV. CONCLUSION

Defendant GTY's motion to compel further responses is GRANTED in part as set forth above. Sanctions are denied as the parties acted with substantial justification.